

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 16-17

CONNIE LANE CHRISTY and CHRISTY COLLECTION INTERNATIONAL INC. on

Behalf of THE ANNIE GRACE FOUNDATION FOR THE CHILDREN OF BALI

INDONESIA

v.

AIR 7 SEAS TRANSPORT LOGISTICS INC.

**RESPONDENT AIR 7 SEAS TRANSPORT LOGISTICS INC.'S OPPOSITION TO
COMPLAINANT CONNIE LANE CHRISTY'S MOTION FOR AMENDMENT TO
ORIGINAL COMPLAINT**

Pursuant to Rule 71 of the Federal Maritime Commission ("Commission") Rules of Practice and Procedure, 46 C.F.R. § 502.71(b), Respondent Air 7 Seas Transport Logistics, Inc. ("Air 7") hereby opposes the Motion for Amendment to Original Complaint (the "Motion") filed by Complainant Connie Lane Christy ("CLC"). Although Air 7 does not oppose CLC's decision to remove the two Complainant

corporate entities, Christy Collection International Inc. (“CCI”) and The Annie Grace Foundation for the Children of Bali, Indonesia (“AGFC”), Air 7 does oppose the motion on the grounds that an Amended Complaint has not been provided for filing, thus potentially leaving the docket devoid of an operative complaint, and making it impossible for Air 7 to respond to a cohesive, definitive, operative pleading if the motion is granted.

By seeking to dismiss CCI and AGFC, CLC admits that they are improper parties to the initial complaint, which Air 7 does not dispute. However, as drafted, CLC’s motion would create a situation that would prevent Air 7 from providing a response to a single, coherent pleading as envisioned under the code. Air 7 respectfully requests that the court make its granting of complaint issue an order requiring CLC to file an Amended Complaint upon the Commission granting of CLC’s motion to amend.

I. CLC’s Proposed Amendment to its Complaint is Improper

Claimant’s motion for an “Amendment” to the complaint, is inconsistent with the language of Federal Rule of Federal Procedure 15(a), which requires amended pleadings, and does not provide for the filing of “amendments.” See *Federal*

Procedure Before Trial, 8:1431 **“Amended pleading required:** FRCP 15(a) requires an amended *pleading* ... not simply an amendment to a pleading.” Rutter Guide (2016) (Emphasis in the original). Here, claimant does not attach a proposed amended complaint.

This deficiency creates an actual, not hypothetical or hyper-technical problem with ambiguity as to exactly which language in the original complaint CLC seeks to eliminate. If the proposed amendment is permitted rather than requiring an amended complaint, Air 7 will be forced to move for a more definitive statement Pursuant to § 502.67, “If a pleading (including a complaint, counterclaim, crossclaim, or third-party complaint filed pursuant to §502.62) to which a responsive pleading is permitted is so vague or ambiguous that a party cannot reasonably prepare a response, the party may move for a more definite statement before filing a responsive pleading.” CLC’s “amendment to complaint” does not provide an intelligible complaint or consistent set of allegations to which Air 7 can provide a response. In fact, if the “amendment to complaint” is taken to allow for the interlineation of the eliminated plaintiffs from the allegations, the complaint would not make any coherent sense. It would also be unclear which allegations and which text she intends to remove from the complaint, leaving it ambiguous as

to the content of the controlling pleading. The Commission may also sua sponte require a complaint to be amended if it fails clearly to state facts which support the allegations, which is the case here. *Maher Terminals, LLC v. The Port Authority Of New York And New Jersey*, 2015 FMC LEXIS 43 *31 (FMC: Served December 18, 2015).

III. Conclusion

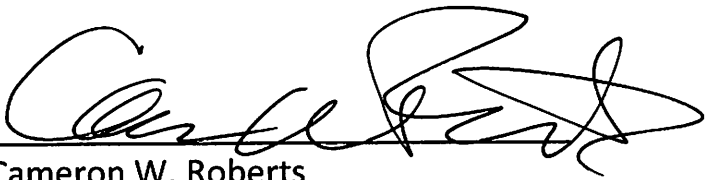
While Air 7 does not object to the removal of the two superfluous plaintiffs from the Complaint, because there is no proposed Amended Complaint, granting the motion would leave the record unclear as to the content of the controlling documents in this litigation.

Air 7, therefore, respectfully requests that the Commission make its granting of the motion to be contingent upon plaintiff filing an amended complaint eliminating the two non-operational plaintiffs.

Dated: January 24, 2017

Respectfully submitted,

By:

A handwritten signature in black ink, appearing to read 'Cameron W. Roberts', written over a horizontal line.

Cameron W. Roberts

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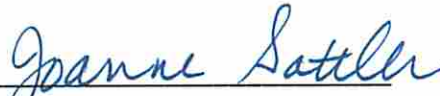
CERTIFICATE OF SERVICE

I hereby certify that I have this 24th day of January, 2017, served a copy of the foregoing RESPONDENT AIR 7 SEAS TRANSPORT LOGISTICS INC.'S OPPOSITION TO COMPLAINANT CONNIE LANE CHRISTY'S MOTION FOR AMENDMENT TO ORIGINAL COMPLAINT by First-Class Mail and e-mail upon the following:

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And

Karen V. Gregory, Secretary
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Joanne Sattler